

MedCAD Digital Library

OEM Contributor Agreement

Terms governing the submission and authorised use of CAD Datapacks on the MedCAD Digital Library

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OEM / Contributing Organisation	[Full legal name of OEM]
Registered Address	[Address]
Platform Administrator	MedCAD Digital Library — Team AM2026-10
Effective Date	[To be inserted upon execution]
Governing Law	Laws of England and Wales

1. Background

1.1 The MedCAD Digital Library (the "Platform") is a governance-controlled digital repository that enables NHS Trusts to request the local additive manufacture of approved Non-Patient-Contact Components, thereby reducing equipment downtime caused by supply chain delays.

1.2 The OEM wishes to contribute one or more CAD Datapacks to the Platform to facilitate the temporary local fabrication of its components by authorised Regional AM Hubs.

1.3 This Agreement sets out the terms on which the OEM contributes CAD Datapacks and the rights and obligations of both parties.

2. Contributed Materials

2.1 The OEM agrees to submit to the Platform the CAD Datapacks listed in Schedule A, attached to this Agreement.

2.2 Each CAD Datapack shall include, at a minimum:

- Three-dimensional geometry data in an approved file format.
- Specified material grade(s) and any applicable material restrictions.
- Process parameters including layer height, infill, post-processing, and surface finish requirements.
- Dimensional tolerances and acceptance criteria.
- Permitted scope of use, including any restrictions on operating environment, load conditions, or duration of deployment.

2.3 The OEM warrants that each submitted CAD Datapack is accurate, complete, and fit for the purpose described.

3. Intellectual Property and Ownership

3.1 The OEM retains full ownership of all intellectual property rights in the CAD Datapacks, including all design data, specifications, and associated documentation.

3.2 By submitting a CAD Datapack to the Platform, the OEM grants the Platform Administrator a non-exclusive, royalty-free, revocable licence to host, store, and make available the CAD Datapack to Authorised Users solely for the purposes described in this Agreement.

3.3 The licence granted does not permit Authorised Users to download, copy, distribute, modify, or reverse-engineer any CAD Datapack outside the controlled Platform environment.

3.4 The Platform Administrator shall implement and maintain access controls, encryption, and audit trail mechanisms to protect the confidentiality and integrity of all submitted CAD Datapacks.

4. Permitted Use of CAD Datapacks

4.1 CAD Datapacks submitted under this Agreement may be used solely for:

- Fabrication of the specified component as a temporary replacement within an NHS Trust, pending delivery of a permanent OEM-supplied part.
- Quality assurance verification and audit activities conducted by the Platform Administrator or a registered Regional AM Hub.

4.2 The following uses are expressly prohibited without separate written authorisation from the OEM:

- Permanent replacement of OEM-supplied components.
- Modification of the design for any purpose.
- Use in patient-contact applications.
- Commercial resale or supply to any third party outside the MedCAD platform.

5. OEM Obligations

- Provide accurate and complete CAD Datapacks in accordance with clause 2.2.
- Notify the Platform Administrator promptly of any design update, safety concern, or recall affecting a submitted CAD Datapack.
- Cooperate with incident investigations as required under the Platform's Liability Framework (MedCAD-LF-002).
- Review and revalidate submitted CAD Datapacks at intervals not exceeding twenty-four (24) months.

6. Platform Administrator Obligations

- Maintain appropriate technical and organisational security measures to protect submitted CAD Datapacks.
- Restrict access to CAD Datapacks to Authorised Users only.
- Provide the OEM with access to audit trail records relating to the use of its CAD Datapacks upon request.
- Remove or suspend access to any CAD Datapack immediately upon written request from the OEM.

7. Term and Termination

7.1 This Agreement shall remain in force until terminated by either party on thirty (30) days' written notice.

7.2 Either party may terminate this Agreement immediately in the event of a material breach by the other party that is not remedied within fourteen (14) days of written notice.

7.3 Upon termination, the Platform Administrator shall remove all CAD Datapacks submitted by the OEM from the Platform within five (5) business days.

8. Confidentiality

Both parties agree to keep confidential all proprietary information exchanged under this Agreement and not to disclose such information to third parties without prior written consent, except as required by law.

9. Digital Execution

This Agreement is executed digitally through the MedCAD Platform. No physical signature is required. The OEM's acceptance is recorded automatically at the point of first CAD Datapack submission, as described below. This constitutes a legally binding agreement under the Electronic Communications Act 2000 (UK).

9.1 Before completing the submission of any CAD Datapack, the OEM is presented with a summary of this Contributor Agreement and must click 'I confirm I am authorised to submit this file and I agree to the MedCAD Contributor Terms' before the upload can proceed.

9.2 The Platform automatically generates and retains a timestamped digital acceptance record at the point of confirmation. A copy of this record is available to both parties via the Platform audit trail.

OEM / Contributing Organisation — Accepting Party

How acceptance is recorded: Mandatory confirmation checkbox presented before each initial CAD Datapack submission. Upload cannot proceed until confirmed.

Platform audit log captures: OEM account ID, organisation name, representative name, IP address, date and time of acceptance, CAD Datapack reference, file hash, Agreement version accepted.

This constitutes a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).

MedCAD Platform Administrator — Platform Operator

How acceptance is recorded: Platform obligations are accepted at the point of platform deployment and configuration. Recorded in the platform system audit log.

Platform audit log captures: Administrator account ID, platform version, deployment timestamp, configuration audit reference.

This constitutes a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).

Schedule A — List of Contributed CAD Datapacks

Component Reference	Component Description	File Format	Permitted Scope of Use